



CHAPTER 17.

An Act to provide, during twelve months, for the discipline and regulation of the Army and the Air Force. [28th April 1939.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of one hundred and eighty-five thousand seven hundred, exclusive of the numbers actually serving in India or Burma :

And whereas under the Air Force (Constitution) Act, 7 & 8 Geo. 5. 1917, His Majesty is entitled to raise and maintain the air force, and it is judged necessary that the whole number of such force should consist of one hundred and eighteen thousand, exclusive of the numbers serving as aforesaid : c. 51.

And whereas it is also judged necessary for the safety of the United Kingdom and the defence of the possessions of this realm that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or be sent to do duty or be

on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm ; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny, or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and thirty-nine on the following days :—

- (a) In Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, on the thirtieth day of April ; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Short title.

1. This Act may be cited as the Army and Air Force (Annual) Act, 1939.

Army Act
and Air
Force Act
to be in
force for
specified
times.

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament, that is to say :—

- (a) Within Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, from the thirtieth day of April, one thousand nine

hundred and thirty-nine, to the thirtieth day of April, one thousand nine hundred and forty, both inclusive; and

- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July, one thousand nine hundred and thirty-nine, to the thirty-first day of July, one thousand nine hundred and forty, both inclusive.

(2) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

(3) A person subject to military law or to the Air Force Act shall not be exempted from the provisions of the Army Act or Air Force Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the numbers hereinbefore mentioned.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of section one hundred and six of the Army Act or the Air Force Act the prices specified in the Schedule to this Act.

Prices in
respect of
billeting.

AMENDMENTS OF THE ARMY AND AIR FORCE ACTS.

PART I.

AMENDMENTS OF THE ARMY ACT APPLICABLE ALSO (SUBJECT TO MODIFICATIONS) TO THE AIR FORCE ACT.

4.—(1) After subsection (3) of section one hundred and eight A of the Army Act (which relates to billeting in cases of emergency), there shall be inserted the following subsection :—

Billeting of
vehicles in
emergency.

“(3A) A billeting requisition issued under subsection (2) of this section may also require the provision of billets for such number of vehicles of any class prescribed by regulations made by the Army Council with the consent of the Treasury, being vehicles in use for the purposes of His Majesty's military forces, as may be specified in

PART I.
—cont.

the requisition, and the provisions of this Act as to billeting shall apply in relation to the billeting of such vehicles as aforesaid under a billeting requisition as they apply in relation to the billeting of horses under such a requisition subject, however, to the following modifications :

- (a) The occupier of any building or land shall be liable to billets ;
- (b) The accommodation to be furnished by the occupier of the building or land shall be standing room for the vehicles, and the prices to be paid therefor shall be such as may be fixed in relation to different classes of buildings and land and different classes of vehicles by regulations made by the Army Council with the consent of the Treasury :

Provided that nothing in this paragraph shall be construed as requiring any payment to be made in respect of vehicles billeted otherwise than in a building unless the vehicles are billeted on land the surface of which has been made up for the passage or parking of vehicles not being land where vehicles are normally allowed to stand free of charge irrespective of the person by whom they are owned or driven ;

- (c) The power conferred by paragraph (7) of Part II of the Second Schedule to this Act on the officer demanding billets to allot them among his soldiers and their horses shall extend to vehicles but save as aforesaid the said Part II shall not apply."

(2) In subsection (4) of the said section one hundred and eight A, for the words "so made" there shall be substituted the words "made under this section."

(3) In subsection (6) of the said section one hundred and eight A, for the words "damage caused by any officer or soldier billeted under this section to the premises in which he is billeted" there shall be substituted the words "damage caused to any building or land which is occasioned by any billeting therein or thereon under this section."

5.—(1) In paragraph (2) of Part I of the Second Schedule to the Army Act, for the words from “breakfast,” in the first place where it occurs, to the end of the paragraph, there shall be substituted the words “breakfast, hot dinner, tea and supper on each day, such meals to consist of, or to be substantially equivalent to, the following quantities of food and drink—

PART I.
—cont.
Amendment
of Schedule
II of Army
Act.

- (a) for breakfast, five ounces of bread, one ounce of butter, one pint of tea with milk and sugar, four ounces of bacon, one ounce of marmalade;
- (b) for hot dinner, ten ounces of meat, three ounces of bread, ten ounces of potatoes, eight ounces of other vegetables, four ounces of pudding;
- (c) for tea, four ounces of bread, half an ounce of margarine, one pint of tea with milk and sugar, two ounces of jam;
- (d) for supper, three ounces of bread, one pint of tea with milk and sugar, four ounces of meat; and ”

(2) For paragraph (3) of the said Part I there shall be substituted the following paragraph—

“(3) When a soldier is not so entitled to be furnished with ‘a meal,’ shall furnish the soldier with the means and the necessary utensils for the preparation and cooking of his food; and ”

6. In paragraph (23) of section one hundred and ninety of the Army Act, for the words “the Irish Free State” there shall be substituted the word “Eire.”

Amendment
of s. 190 of
Army Act.

7. References in the preceding sections of this Part of this Act to the Army Act shall be deemed to include references to the Air Force Act, and the provisions of the said sections shall in their application to the Air Force Act have effect subject to any of the general modifications set out in Part I of the Second Schedule to the Air Force (Constitution) Act, 1917, which apply and to the following special modification, namely, that for the words “military forces” there shall be substituted the words “air forces.”

Application
of Part I to
Air Force
Act.

PART II.

AMENDMENTS OF THE ARMY ACT.

Courts-martial to have power to combine sentence of severe reprimand or reprimand with sentence of forfeiture of service for purposes of promotion.

8.—(1) In paragraph (3) of the proviso to section forty-four of the Army Act (which enables a court-martial to combine the punishment of a severe reprimand or reprimand with the punishment of forfeiture of seniority of rank) after the words “forfeiture of seniority of rank” there shall be inserted the words “and an officer when sentenced to forfeiture of all or any part of his service for the purposes of promotion”.

(2) Paragraph (e) of subsection (2) of section one hundred and eighty of the Army Act (being a special provision as to officers belonging to His Majesty's Indian forces which is rendered unnecessary by the preceding provisions of this section) is hereby repealed.

Amendment of s. 90 of Army Act.

9. In the proviso to subsection (2) and the proviso to subsection (4) of section ninety of the Army Act (which enable discharges and transfers to the reserve to be delayed in certain cases with the consent of the soldier concerned) for the words “three months” there shall be substituted the words “six months.”

Amendment of s. 175 of Army Act.

10. In paragraph (9) of section one hundred and seventy-five of the Army Act (which relates to persons subject to military law as officers) after the words “the Army in India reserve of officers” there shall be inserted the words “or the Army in Burma reserve of officers.”

PART III.

AMENDMENTS OF THE AIR FORCE ACT.

Amendments as to certain offences in connection with flying.

11.—(1) At the end of section thirty-nine A of the Air Force Act there shall be inserted the following subsection—

“(2) Every person subject to this Act who commits any of the following offences, that is to say,—

(a) signs any certificate in relation to an aircraft or aircraft material without ensuring the accuracy thereof; or

(b) being the pilot of one of His Majesty's aircraft, flies it at a height less than such height as may be prescribed by any regulation issued under the authority of the Air Council, except—

(i) while taking off or alighting; or

(ii) in such other circumstances as may be so prescribed; or

(c) being the pilot of one of His Majesty's aircraft, flies it so as to cause, or to be likely to cause, unnecessary annoyance to any person,

shall on conviction by court-martial be liable to suffer imprisonment, or such less punishment as is in this Act mentioned."

(2) At the end of section nine of the Air Force Act there shall be inserted the following subsection—

"(3) For the purposes of this section, the captain of an aircraft, though of inferior rank, shall, in relation to the flying or handling of the aircraft and all matters affecting the safety thereof, be deemed to be the superior officer of every other person therein."

12. In paragraph (4) of section one hundred and ninety of the Air Force Act (which defines the word "officer") after the words "in India" there shall be inserted the words "or Burma".

Amendment
of s. 190 of
Air Force
Act.

SCHEDULE.

Section 3.

PRICES IN RESPECT OF BILLETING.

Accommodation to be provided.	Maximum price.
Lodging and attendance for a soldier where meals furnished.	Tenpence a night for the first soldier and eightpence a night for each additional soldier.
Breakfast as specified in Part I of the Second Schedule to the Army Act.	Eightpence each.
Dinner as so specified - - - -	Elevenpence.
Tea as so specified - - - -	Threepence.
Supper as so specified - - - -	Fivepence.
Where no meals furnished, lodging and attendance, and the means and the necessary utensils for the preparation and cooking of his food - - - -	Tenpence a night for the first soldier and eightpence a night for each additional soldier.
Stable room and ten pounds of oats, twelve pounds of hay, and eight pounds of straw a day for each horse.	Two shillings and threepence a day.
Stable room without forage - - - -	Sixpence a day.
Lodging and attendance for an officer -	Three shillings a night.

Note.—An officer shall pay for his food.

In the application of this Schedule to the Air Force, references to the Air Force Act and to an airman shall be substituted for references to the Army Act and to a soldier.

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